

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN COSTA RICA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Costa Rica, grounded in the environmental viability system administered by SETENA, the constitutional right to a healthy and ecologically balanced environment, and a constitutional court anyone can reach without a lawyer or a fee

*This guide uses the Costa Rican legal terms you will actually encounter (the *evaluación de impacto ambiental* and the *viabilidad ambiental*, SETENA and MINAE, the D1 and D2 forms, the categories A, B1, B2 and C, the *áreas ambientalmente frágiles*, the *recurso de amparo* and the Sala Constitucional, the *denuncia* before the environmental tribunal, and so on), each explained in plain language where it first comes up. Costa Rica's environmental regulations are amended frequently; the core mechanics below apply, but check the current instruments.*

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Spanish legal terms are given with a short English gloss.

A note on money. Budgets in this guide are in colones (CRC). Every figure is indicative — and Costa Rica is the country in this series where a community can accomplish the most with the least money, because the decisive constitutional remedy costs nothing at all.

A note that changes everything. In Costa Rica the **recurso de amparo** before the Constitutional Chamber is **free**, may be filed **online**, requires **no lawyer**, needs no particular format or authentication, and must be dealt with **ahead of any other case**. If you read only one section of this guide, read Section 8.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Costa Rica, and it does so through a route that is genuinely unusual: **the courthouse door is open to everyone, for nothing**. The **recurso de amparo** before the **Sala Constitucional** may be brought by **any person, without a lawyer, without a fee, without authentication or any particular format**, and it must be examined **with priority over any other process**. It protects the rights in the Constitution and in the international human rights instruments applicable in the country, and it reaches not only public authorities but private actors in a position of power. In most of the world a community's first problem is affording and finding a lawyer. Here, a farmer can write to the Constitutional Chamber on their own and be heard.

What that remedy protects is equally strong. **Article 50 of the Constitution**, as reformed in 1994, provides that **every person has the right to a healthy and ecologically balanced environment**, and that **the State shall guarantee, defend and preserve that right** — importing the precautionary approach and state environmental assessment into the constitutional text. The Constitutional Chamber has held that permits should issue only **once environmental viability has been approved**, precisely because irreversible damage is better prevented than mitigated afterwards. And in a 2018 ruling the Chamber went further on information: hearing an amparo from a citizen refused technical data about a public watercourse, it invoked **Principle 10 of the Rio Declaration** and the Inter-American Court's **principle of maximum disclosure**, and expressly set aside its own earlier position that had allowed mining-authority technical documents to be kept secret.

The administrative system sits beneath this. Under the **Ley Orgánica del Ambiente**, activities that alter or destroy elements of the environment, or generate residues or hazardous materials, require an **evaluación de impacto ambiental** by **SETENA**, and that body's **prior approval is an indispensable requirement before the activity may begin**. SETENA classifies projects as **A, B1, B2 or C** by impact, routes them through the **D1 or D2** form accordingly, weighs whether the site falls within **environmentally fragile areas**, and — if satisfied — grants the **viabilidad ambiental**, the licence that permits the project to proceed. Where commitments are later breached or new impacts appear, compensation measures and a compensation plan follow.

The honest counterweight is real. SETENA is chronically overloaded and has faced sustained criticism for the depth and speed of its review. Assessments are prepared by consultants the developer pays, albeit registered ones. For the lowest-impact route there is a **positive silence rule** — where SETENA does not respond within a short period to a complete D2, the developer may presume viability was granted — which means some projects proceed without anyone examining them at all. Tourism, real estate and infrastructure pressure on coasts and in water-recharge areas is intense. And the Chamber itself refuses cases that are really about **ordinary legality rather than fundamental rights**, sending them to the administrative courts and costing the community months.

What "winning" realistically means. Sometimes an outright annulment — Costa Rica's constitutional jurisprudence includes decisions that have voided major resource projects. More often: **viability refused, conditioned, or suspended**; a project stopped while an amparo is resolved; information ordered to be released; an environmental damage complaint producing restoration orders; a project redesigned away from a fragile area or a recharge zone; or a compensation plan imposed. The realistic goal is to use a remedy that costs nothing, and to use it precisely.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — establish the category, the form, the fragile-area position, and whether viability has issued.
2. **Documentation** — build a record strong enough for SETENA, the environmental tribunal and the Constitutional Chamber.
3. **Local opposition** — organise so that objections, complaints and amparos come from many named people.
4. **Legal challenges** — the administrative file, the environmental damage complaint, and above all the **amparo**.
5. **Media strategy** — coverage that raises the cost and reaches the technical allies you need.

No single step wins alone. In Costa Rica the combination that works is **a documented environmental fact plus a well-framed constitutional claim**.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Costa Rica's tilt is administrative rather than judicial: an overloaded regulator, developer-funded studies, and a silence rule that lets small projects through unexamined. Assessing that honestly helps you choose the right tools: the strongest routes are **checking whether viability exists at all, demanding the file**, using the **environmental tribunal** for damage, and framing a **constitutional claim** that is genuinely about the right to a healthy environment rather than mere legality. Section 13 deals honestly with tilted situations.

How to use this guide

Read Sections 1–3 once, and Section 8 early — the amparo shapes everything. Work Section 4 immediately if a project has appeared. Sections 5–7 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you judge how far to take it.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Costa Rica is a unitary republic with **provinces**, **cantones** governed by elected **municipalidades**, and **distritos**. Environmental assessment rests on the **Ley Orgánica del Ambiente**, which created **SETENA** to give practical effect to the constitutional right in **Article 50**; alongside it sit sector statutes on water, forests, mining and coastal land, and a specialised administrative environmental tribunal.

The bodies that decide — and what each one controls

SETENA (Secretaría Técnica Nacional Ambiental). The environmental assessment body, constituted as an organ of **maximum deconcentration** of the **Ministry of Environment and Energy (MINAE)** — meaning it decides on its own account rather than at the Minister's direction. It classifies projects, receives the **D1** or **D2** evaluation document, requires supporting technical studies, and grants or refuses the **viabilidad ambiental**. It also monitors environmental commitments and imposes **compensation plans** where they are breached or new impacts appear.

MINAE and its directorates. The ministry and its water, geology and mines, and conservation area directorates issue the underlying concessions and permits — water abstraction, extraction, forestry — each of which is conditioned by environmental viability.

The municipalidad. The canton grants construction and land-use permission, adopts the **plan regulador** (the local land-use plan) — which, crucially, determines whether a project takes the simpler **D2** route — and is a genuine political actor with its own environmental competences.

The environmental administrative tribunal. A specialised body attached to MINAE that receives complaints of environmental damage, investigates, and can order restoration and impose sanctions. Complaints may be brought by any person and cost nothing, which makes it a real and underused route.

The Sala Constitucional (the Constitutional Chamber). The decisive forum. It hears **recursos de amparo** — free, lawyer-free, priority-handled — and actions challenging the constitutionality of laws, regulations and decrees, including on grounds of conflict with ratified international treaties.

Which one is "yours"? Ask: what **category** is the project — A, B1, B2 or C? Was it filed on **D1** or **D2**, and does the canton have an approved **plan regulador**? Does the site lie in an **environmentally fragile area** or a water-recharge zone? Has **viability** been granted, and when? Which **municipalidad** must give construction permission? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

Under the Ley Orgánica del Ambiente the path is roughly:

1. **Is an evaluation required?** Activities that **alter or destroy elements of the environment, or generate residues or toxic or hazardous materials**, require an environmental impact evaluation by SETENA, and its **prior approval is an indispensable requirement to begin** the activity, work or project. Starting without it is unlawful on the face of the statute.
2. **Classification.** SETENA classifies activities by impact: **A** (high), **B1** (moderate-high), **B2** (moderate-low) and **C** (low).
3. **Which form.** A project in category **C, or B2 in a canton whose plan regulador SETENA has approved**, proceeds on the shorter **D2**. A project in **B2 without an approved plan regulador, or in B1 or A**, must proceed on the fuller **D1**, which requires supporting technical studies of the physical, geological, anthropic-risk and biological characteristics of the site.
4. **Environmentally fragile areas.** The assessment must take account of the listed **áreas ambientalmente frágiles**, which identify technical environmental limitations and are weighed by SETENA in reaching its decision. Establishing that a site falls within one is among the most useful early findings a community can make.
5. **Evaluation by registered professionals.** The evaluations must be carried out by an **interdisciplinary team registered and authorised by SETENA** — so the qualifications and registration of those who signed are checkable, and occasionally challengeable.
6. **Decision — the viabilidad ambiental.** If approved, SETENA grants **environmental viability**, the licence permitting the developer to proceed to the remaining authorisations. Conditions and environmental commitments attach.
7. **The silence rule on D2.** For the shorter route, SETENA must resolve within a **short statutory period** after a complete D2; if the developer receives no requirement within it, they may **presume viability was granted** and confirm the registration in SETENA's official register. This is a real feature of the system and worth knowing: a low-category project may hold viability that nobody actually examined.

8. **Commitments, breach and compensation.** Where a project breaches its environmental commitments or produces impacts that were never assessed, **compensation measures** and a **compensation plan** follow — an ongoing lever after approval, not merely a formality.

The rulebook — the policies that decide the outcome

- **The Constitution, Article 50.** Every person has the right to a **healthy and ecologically balanced environment**, and the State must **guarantee, defend and preserve** it — the provision on which Costa Rican environmental litigation is built, and which imports precaution and state assessment.
- **The Ley Orgánica del Ambiente.** Was an evaluation required and obtained **before** the activity began? Was the correct category and form applied? Were fragile areas considered? Are the environmental commitments being met?
- **Access to environmental information.** The Constitutional Chamber has applied **Rio Principle 10** and the **principle of maximum disclosure**, setting aside an earlier position that permitted technical documents held by the mining authority to be kept secret. Environmental information in public hands is presumptively disclosable.
- **Sector and land-use law.** Water, forest, mining and coastal statutes, and the canton's **plan regulador** — the last determining not only what may be built but which assessment route applies.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Costa Rica's economy leans heavily on tourism, real estate, agriculture and infrastructure, much of it concentrated on coasts, hillsides and in water-recharge areas; SETENA is chronically overloaded relative to the volume of files it must process; the assessments are commissioned and paid for by developers, even though the professionals are registered; and the silence rule on the lowest route lets some projects through without substantive review. None of this is unlawful, but it explains the lean — and why the constitutional route, which does not depend on administrative capacity, matters so much here.

The overseers — who watches the decision-makers

- **The Sala Constitucional** — free, accessible, priority-handled, and the source of the doctrine that permits must follow environmental viability rather than precede it.
- **The environmental administrative tribunal** — for environmental damage, restoration and sanctions, on complaints anyone may bring.
- **The Contraloría General de la República** — public funds and the performance of administration.
- **The Defensoría de los Habitantes** — the ombudsman, which takes environmental and administrative complaints.
- **The municipalidad and its council** — which can withhold construction permission and adopt protective land-use provisions.
- **Universities and civil society** — Costa Rica's public universities and environmental organisations have unusually strong technical capacity and a long record of supporting community cases.

Naming and using the right body matters: in Costa Rica the most consequential early judgment is usually **whether your complaint is a fundamental-rights question for the Constitutional Chamber or an ordinary-legality question for the administrative courts** — because getting that wrong costs months.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Costa Rican and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Costa Rica sits inside the table: the **amparo costs nothing and is decided quickly**, which inverts the usual economics of environmental litigation — but it only works if the claim is genuinely a constitutional one.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (CRC)	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Local opposition only	20-30%	6-18 months	low	Municipal and political pressure

Requesting the SETENA file	30–50%	weeks	minimal	The file in hand; the case becomes possible
Objections to SETENA	20–35%	1–4 months	low	Conditions, further studies, or refusal
Complaint to the environmental tribunal	25–45%	6–24 months	none	Investigation; restoration; sanctions
Municipal action (permission, plan regulador)	25–40%	6–24 months	low	Construction permission withheld
Amparo — information refused	45–65%	1–4 months	none	Documents ordered released
Amparo — environmental rights	35–55%	2–8 months	none	Works suspended; viability annulled
Media only	15–25%	1–6 months	low	Public and political pressure
Docs + local opposition + media	30–45%	6–18 months	low	Pressure plus a stronger case
All steps combined	55–70%	6–24 months	low	Viability refused, suspended or annulled; project redesigned, delayed or abandoned

Key insight: all steps together are far more effective than any single one — and Costa Rica's multiplier is that **the decisive remedy is free and fast**. Everywhere else in this series, litigation is the expensive last resort; here it is available to any resident from week one, must be handled ahead of other cases, and is backed by a constitutional right that expressly requires the State to **guarantee, defend and preserve** a healthy and ecologically balanced environment. The distinctive disadvantages are an overloaded regulator, developer-funded studies, a **silence rule** that lets low-category projects through unexamined, and a Chamber that will decline a case dressed up as constitutional when it is really about ordinary legality.

A note on cost: the amparo is free, needs no lawyer, and can be filed online in any written form. Complaints to the environmental tribunal are also free. Requesting the administrative file costs little. The only real expenditure is independent technical evidence — hydrogeology, biology, slope stability — and Costa Rica's public universities are an unusually accessible source of it.

Effectiveness Visualization

SUCCESS PROBABILITY (viability refused, suspended or annulled; project redesigned, delayed or abandoned)

FAVOURABLE SCENARIO (fragile area or water recharge affected, viability questionable, technical evidence obtained):

All steps combined: 55–70%
Amparo (environmental): 35–55%
Environmental tribunal: 25–45%
Single step: 5–50%

TILTED SCENARIO (project on the D2 route with presumed viability, strong economic backing, works advanced):

All steps combined: 30–45%
Amparo (information): 25–45%
Local + municipal: 20–35%
Single step: 3–15%

How to read this honestly. In Costa Rica the strongest facts are **constitutional in shape**: an activity begun **without the prior environmental viability the statute makes indispensable**; a site inside an **environmentally fragile area** or a water-recharge zone that the assessment did not properly weigh; **environmental information refused**, where the Chamber has applied the principle of maximum disclosure; or environmental commitments breached with impacts nobody assessed. Where you can frame one of these, the amparo is fast, free and genuinely potent. What does **not** work is asking the Chamber to second-guess technical judgement or to correct ordinary administrative error — those go to the contentious-administrative courts, and a misdirected amparo loses months. Judge success accordingly: **suspension, annulment, conditions, restoration and disclosure are all realistically available**, and they are available to people with no money at all.

Step Importance Ranking (When All Combined)

1. **Legal challenges** — first in Costa Rica, uniquely, because the decisive remedy is free, fast and open to anyone.
2. **Documentation** — the evidence that turns a grievance into a constitutional claim.

3. **Local opposition** — supplying named applicants, witnesses, and municipal pressure.
4. **The administrative file and objections** — cheap, and the source of the procedural facts.
5. **Media** — which reaches the university departments and organisations whose technical evidence you need.

Winning Costa Rican campaigns combined a precise constitutional framing, independent technical evidence, municipal engagement, and the willingness to file early rather than exhaust every administrative avenue first.

What Costa Rican Campaigns Actually Show

A few patterns recur. **The courthouse is genuinely open** — the **recurso de amparo** may be filed by **any person, free of charge, online, without a lawyer, without authentication and in any written format**, and the Law of Constitutional Jurisdiction requires it to be examined **with priority over any other process**. It protects rights in the Constitution and in applicable international human rights instruments, and reaches private actors in positions of power as well as public authorities. **The right is substantive, not decorative** — **Article 50** guarantees a **healthy and ecologically balanced environment** and obliges the State to **guarantee, defend and preserve** it, and the Chamber has reasoned that permits should follow approved environmental viability precisely because **irreversible damage is better prevented than mitigated**. **Information is presumptively public** — in a 2018 amparo brought by a citizen refused topographic data about a public watercourse, sought to check compliance with an authorised extraction rate, the Chamber invoked **Rio Principle 10** and the Inter-American Court's **principle of maximum disclosure**, and expressly **disapplied its own earlier ruling** that had allowed technical documentation held by the mining directorate to be kept secret. **But framing decides everything** — where a complaint is one of **mere ordinary legality without a fundamental-rights component**, the Chamber refers it onward, and the delay can be fatal. The through-line: **document the environmental fact, frame it as a right, and file early — it costs you nothing**.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics: exact location and extent, project type and stage, and what is there now — **springs, wells, rivers and quebradas, water-recharge areas, forest and its legal status, mangrove and coastline, farmland, and homes**. Obtain the **D1 or D2 file** and list every admitted impact with its page reference. Pay particular attention to **water** — recharge zones, abstraction and downstream users — and to **slope and forest**, since both carry specific legal protection in Costa Rica.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the **category** — A, B1, B2 or C; (b) whether the file went in on **D1 or D2**, and whether the canton has a **plan regulador approved by SETENA**, since that is what routes a B2 project to the shorter form; (c) whether the site lies within an **environmentally fragile area**; (d) whether **viability has been granted**, on what date, and whether it was granted expressly or **presumed under the silence rule**; and (e) which **municipalidad** must grant construction permission.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: **viability refused or conditioned**; further technical studies required; **construction permission withheld** by the canton; an **amparo** suspending works or annulling viability; a **complaint to the environmental tribunal** producing investigation, restoration and sanctions; or a **compensation plan** imposed where commitments were breached. Map them and pursue at least two.

Question 4: When Is the Decision Final?

Diarise carefully. For the administrative route, the **short statutory period** applicable to a complete D2 matters, because expiry can produce **presumed viability**. For the constitutional route, the **amparo** must generally be brought within **two months** of the act complained of or of learning about it — but note that **continuing violations** are treated differently, so where harm is ongoing the position is not the same as for a one-off decision. Confirm the current position, and do not

delay: the remedy is free, so there is little reason to wait.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: the developer and any foreign parent or investor; whether the project depends on a water concession, a forest permit or coastal land; whether the canton's plan regulador was recently amended; and what the project's economic weight is locally. Use public sources — SETENA's register, the municipal records, the official gazette, and the companies registry. Build a dated, sourced timeline.

Output of Step 1: a one-page fact sheet with the project's description, its category and form, the fragile-area position, whether viability exists and how it was obtained, the municipal permission position, every deadline, and the money map.

Worked example: which lever is actually open

Suppose earthworks begin on a hillside above a community's springs, in an area residents believe is a water-recharge zone, with no notice and no visible process. Working the questions: **Q1** — you record the springs, the wells, the slope and the forest, dated. **Q2** — you go to **SETENA's register** and ask whether the project has **viability**, in which **category**, on **D1 or D2**, and whether the site falls in an **environmentally fragile area**. Three answers are possible, and each opens a different door: no viability at all — in which case the activity has begun without the **prior approval the statute makes indispensable**, the cleanest constitutional fact available; viability presumed under the **silence rule** on a D2, meaning nobody substantively examined a project on a recharge zone; or viability expressly granted, in which case you examine whether the fragile area and the water were assessed. **Q3** — the live levers are an **amparo** (free, no lawyer, priority) framed on the right to a healthy and ecologically balanced environment and the requirement of prior viability; a **complaint to the environmental tribunal** for damage; and pressure on the **municipalidad** over construction permission. **Q4** — you act now, because the remedy costs nothing and works are advancing. **Q5** — the registers show the developer. In an afternoon you know that **the viability question is the campaign, and the amparo is the instrument**.

STEP 2: DOCUMENTATION

Documentation in Costa Rica has a specific target that shapes everything: the **Constitutional Chamber**, which decides quickly and on the papers. That is a gift and a discipline. A gift, because you do not need to fund years of litigation to be heard. A discipline, because a chamber deciding fast on documents needs a **short, clear, well-evidenced constitutional fact** — not a sprawling file. Build your record so that the essential point can be stated in two pages with the proof attached.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the works, and prove **what kind of place it is**.

Water first. Document springs, wells, quebradas and rivers: location, flow, use, and the households, farms and aqueducts depending on them. Where the community is served by a rural water association, obtain its records — they are often the best long-run evidence of a source's condition and yield.

The legal character of the site. This matters more in Costa Rica than in most systems. Establish whether the land lies within an **environmentally fragile area**, a **water-recharge zone**, a protected wildlife area or its buffer, a **forest** whose land-use change is restricted, a steep slope, or the restricted coastal zone. A place's legal status can decide a case on its own.

Forest, slope and biodiversity. Document tree cover and its character, gradients, erosion risk, and species presence — with dated, located photographs.

Homes, farms and livelihoods. Document dwellings, distances from the works, farms and their water sources, and the households affected.

How to hold it. Keep everything dated, located and backed up, held collectively. Photographs from **fixed points, repeated over time**, are the most persuasive record a community can build cheaply.

LAYER 2: FILE AND LEGALITY ANALYSIS

Show what the project would do and whether it is lawfully authorised. Catalogue four things:

1. **Does viability exist, and how was it obtained?** Check SETENA's register. Was **environmental viability granted expressly**, or **presumed because the administration did not respond in time** on a D2? Was the activity **begun before viability**, contrary to the statutory requirement of prior approval? This is the single most important question in a Costa Rican campaign.
2. **Category and form.** Was the project classified **A, B1, B2 or C** correctly for its real scale and location? Did it take the shorter **D2** route on the basis of an approved **plan regulador**, and does such a plan actually exist and cover this site? A B2 project that should have gone on D1 has escaped the technical studies D1 requires.
3. **Fragile areas and the studies.** Did the assessment address the **environmentally fragile areas** list, the water-recharge position, slope and forest? Were the required supporting technical studies produced, and by professionals **registered and authorised** as the law requires?
4. **Commitments and their breach.** Where viability exists, obtain the **environmental commitments** and check performance. Breach, or impacts never assessed, trigger compensation measures and a **compensation plan** — a live post-approval lever.

Get expert eyes on it. Costa Rica's public universities are an unusually accessible technical resource, and hydrogeological, biological and geotechnical opinions from them carry real weight. For water-recharge and slope questions in particular, a signed independent opinion is often what converts a community's conviction into a fact the Chamber can act on.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate harm into human terms — which, under Article 50, is the constitutional argument:

- **Water and health** — households and aqueducts whose supply is threatened, the alternatives available, and any contamination risk.
- **Livelihoods** — farms, tourism enterprises, and fishing at risk, quantified per household where possible.
- **Community and place** — displacement, loss of access, and the character of the area being changed.
- **Irreversibility** — say plainly what cannot be undone: a spring lost, a slope destabilised, forest cleared. The Chamber's own reasoning turns on preventing irreversible damage rather than mitigating it afterwards, so make that argument explicit.

Package this layer twice: a rigorous version in **Spanish** for SETENA, the tribunal and the Chamber, and a plain two-page version — the essential facts and the constitutional point — that a busy court can absorb quickly.

How to Structure Your Documentation

- **Phase 1: Baseline and legal character (Weeks 1-3)** — water, site status, fixed-point photographs.
- **Phase 2: The file (Weeks 1-4)** — SETENA's register and the D1/D2 file; establish the viability position.
- **Phase 3: Technical evidence (Months 1-3)** — university or professional opinion on water, slope or forest.
- **Phase 4: Compliance (ongoing)** — environmental commitments monitored after any approval.

Common Documentation Pitfalls (What Fails)

- **Not checking the register first** — whether viability exists, and how, decides your strategy.
- **Overlooking the silence rule** — presumed viability on a sensitive site is itself the story.
- **Ignoring the site's legal character** — fragile area, recharge zone, forest and slope status can be decisive.
- **Filing a sprawling amparo** — the Chamber decides fast on papers; a focused two-page point with annexes beats a hundred-page grievance.
- **Framing ordinary legality as a constitutional claim** — it will be referred onward and you will lose months.
- **Waiting to be perfect** — the remedy is free and the harm may be irreversible.

Documentation Budget Breakdown (CRC)

Item	Low (volunteer/university)	Higher (commissioned)
Fixed-point photography, GPS	minimal	modest
Copies of the SETENA file	modest	modest
Hydrogeological or geotechnical opinion	often via university	moderate

Hydrogeological or geotechnical opinion	Cost of the remedy	Success
Water sampling	modest	moderate
Amparo filing	none	none
Legal advice (optional)	modest	moderate

Costa Rica is the cheapest jurisdiction in this series in which to reach a court. Spend what you have on **independent technical evidence**, because that is what the free remedy needs to succeed.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what decides a Costa Rican case is documentary, and much of it must be disclosed to you.

SETENA. The **register** entry for the project, the **D1 or D2** file, the supporting technical studies, the **resolution granting or refusing viability**, the **environmental commitments**, and any monitoring or compensation records. Ask in writing; the file is the campaign's foundation.

The municipalidad. The **plan regulador** and whether SETENA has approved it — which determines the assessment route — plus construction and land-use permission, council resolutions, and municipal water and drainage records.

MINAE directorates. Water concessions, geology and mines files, forestry permits, and protected-area boundaries and buffers.

Fragile-area and recharge mapping. The **environmentally fragile areas** listing and any water-recharge delineation covering the site — the documents that establish the legal character of the place.

Rural water association records. Where a community aqueduct exists, its records of yield, quality and abstraction are often the most valuable long-run water evidence available.

Company and gazette records. The companies registry for the developer and its investors, and the official gazette for relevant decrees and resolutions.

How to force a document open. Costa Rica's constitutional order protects access to information held by the administration, and the Constitutional Chamber has applied **Rio Principle 10** and the **principle of maximum disclosure** in environmental matters — expressly setting aside an earlier position that had permitted technical documents held by the mining directorate to be kept secret. If a request is refused, **an amparo for information is fast, free and has a strong success record**: that is often the first filing a community should make, because it produces the file that the substantive case needs.

Free and low-cost help. Public universities, environmental organisations, rural water associations, and the ombudsman are all realistic sources of support. Because the amparo requires no lawyer, the constraint is usually technical evidence rather than legal representation — so approach a university department early.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to SETENA and the sector directorate, and the local-ally entries point you to organisations and academics already working nearby.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In Costa Rica, organising serves a different purpose from most countries in this series. You are not building a movement in order to afford a lawyer or to force a hearing — the courthouse is already open and free. You are organising to produce **named residents who can each file, witnesses who can attest to what the place was like, and the local political weight that decides construction permission at the canton**. A single person can file an amparo. But a community that files together, holds the municipal council to account, and can produce a rural water association's records and a university opinion is operating on an entirely different level.

Three principles carry special weight here: **file early and file free** (the remedy costs nothing, so the usual reason for delay does not apply, and harm to a spring or a slope may be irreversible); **the canton is a real battleground** (construction permission and the plan regulador are municipal, and the plan regulador is what routes projects to the

lighter assessment); and **technical evidence over volume** (a hydrogeologist's signed opinion will do more before the Chamber than a thousand signatures).

PHASE 1: FOUNDATION (Weeks 1-3)

Step 1a: Start with the most affected — and check the register. Reach the households whose water, land or homes are at stake, and in the same week ask **SETENA** whether the project has **viability**, in what category, and on which form. Begin fixed-point photographs of the springs, the slope and the works.

Step 1b: Affinity groups by concern. Let people join through water, forest, slope and flooding, farming, or tourism. Where a **rural water association** serves the community, engage it immediately — it is both an affected institution and the keeper of the best water records.

Step 1c: Approach a university department. Because legal representation is not the constraint, the highest-value early contact is technical: a hydrogeologist, geotechnical engineer or biologist willing to give a signed opinion. Costa Rica's public universities are accessible in a way few countries' are.

PHASE 2: PUBLIC LAUNCH (Weeks 3-8)

Step 2a: Community meeting. Inform, decide collectively, and identify who is willing to be a named applicant. Explain plainly that filing costs nothing and requires no lawyer — most people do not know this.

Step 2b: File the information amparo if documents are refused. If SETENA or the municipalidad will not produce the file, that refusal is itself a fast, winnable constitutional claim, and it produces the documents the main case needs (Section 8B).

Step 2c: Objections to SETENA and the municipalidad. Submit written objections on water, fragile areas, slope and forest, and ask the canton to withhold construction permission pending the environmental position (Sections 8C and 8D).

Step 2d: Media at launch. Time coverage to the filing. Costa Rican media follows environmental disputes closely, and coverage often produces the technical ally you need.

PHASE 3: COALITION EXPANSION (Months 2-6)

Step 3a: Broaden the alliance. Bring in the **rural water association** and downstream communities, neighbouring districts, the **municipal council** and sympathetic councillors, farming and tourism associations, universities, environmental organisations, and — where relevant — the conservation area administration.

Step 3b: Coalition agreements. Agree who files, who holds the documents, who speaks publicly, and how decisions are taken. Because any person may file individually, agree also whether you file as a group or in parallel, so that the Chamber receives a coherent case rather than a scatter.

Step 3c: Commission the technical opinion. Get the water, slope or forest evidence signed and dated. This is the step that most often decides whether a free remedy succeeds.

PHASE 4: SUSTAINED PRESSURE (Months 3-12)

Step 4a: File the substantive amparo. Frame it on the **right to a healthy and ecologically balanced environment**, the State's duty to **guarantee, defend and preserve** it, and the requirement that **prior environmental viability is indispensable** before works begin. Ask for suspension while it is resolved.

Step 4b: Use the environmental tribunal. Where damage has already occurred, file a **denuncia** — it is free, open to anyone, and can lead to investigation, restoration orders and sanctions (Section 8E).

Step 4c: Work the canton. Press the **municipal council** on construction permission and on the **plan regulador**, which determines both what can be built and which assessment route applies. Municipal decisions are political and are reachable.

Step 4d: Public actions. Assemblies, marches and vigils are common and lawful in Costa Rica, and the civic space is comparatively open. Keep actions peaceful and orderly, coordinate with local authorities where required, and remember that in this jurisdiction the courtroom is usually the sharper instrument — public action works best when it supports and publicises a filed case.

Worked example: a community that unlocks the strong levers

A hillside community sees machinery clearing above the springs that feed its aqueduct. Anger rises and a road blockade is proposed. What converts the anger into force happens differently, and faster. First, two residents go to **SETENA's register** and ask whether the project holds **viability**, in what category, and on which form — and discover it proceeded on a **D2** with viability **presumed** because the administration did not respond in time, on a site the community believes is a **water-recharge zone**. Second, when the full file is not produced, they file an **amparo for the information** — free, online, no lawyer — and obtain the documents. Third, the **rural water association** supplies years of records on the springs' yield, and a **university hydrogeologist** signs a short opinion that the works sit within the recharge area. Fourth, they file the substantive **amparo**, framed on **Article 50**, the State's duty to guarantee and preserve the right, and the statutory rule that **prior viability is indispensable** — asking for suspension of works while it is decided, and pointing out that the loss of a spring cannot be undone. Fifth, in parallel they file a free **denuncia** with the environmental tribunal over the clearing already done, and press the **municipal council** to withhold construction permission. None of this required money. The lesson generalises: **in Costa Rica the register check in week one and the university opinion in month two are what make a free remedy decisive by month three.**

Opposition Building Budget: Year-Long Campaign (CRC)

Low. The recurring costs are transport, printing, communications and copies of the file. The **amparo and the environmental tribunal complaint cost nothing**. The one expenditure worth prioritising is an **independent technical opinion** on water, slope or forest — and even that is often obtainable through a public university. Keep transparent accounts, and note that in Costa Rica the binding constraint on a community campaign is usually **technical evidence and speed**, not money.

STEP 4: LEGAL CHALLENGES

This is the section that matters most in Costa Rica, because the decisive remedy is free, fast and open to anyone. Three tracks — the administrative route, the environmental tribunal, and the Constitutional Chamber.

TRACK 1: THE ADMINISTRATIVE ROUTE (the front door)

- **Check the register first.** Ask SETENA whether **environmental viability** exists for the project, in which **category**, on **D1 or D2**, on what date, and whether it was granted expressly or **presumed** because the administration did not respond in time. Everything else follows from the answer.
- **Challenge the category and the form.** A project routed through the shorter **D2** on the basis of an approved **plan regulador** — where no such plan exists, or it does not cover the site, or the project's real scale places it in a higher category — has escaped the technical studies **D1** requires. Say so in writing.
- **Raise the site's legal character.** Put the **environmentally fragile area** listing, the water-recharge position, forest status and slope squarely before SETENA, with your evidence.
- **Object and demand studies.** Submit written objections and ask that the specific technical studies the site requires be produced before any viability is granted or maintained.
- **Enforce the commitments.** Where viability exists, obtain the **environmental commitments**, monitor them, and report breaches — which trigger compensation measures and a **compensation plan**.

TRACK 2: THE ENVIRONMENTAL TRIBUNAL (for damage)

- **A free complaint anyone can bring.** Where environmental damage has occurred — clearing, filling, contamination, works in a protected or fragile area — a **denuncia** to the administrative environmental tribunal costs nothing and may be brought by any person. It can lead to investigation, orders for **restoration**, and sanctions.
- **Use it alongside, not instead of, the amparo.** The tribunal addresses damage and remediation; the Chamber addresses rights and legality. Running both is normal and sensible.

TRACK 3: THE CONSTITUTIONAL CHAMBER (the decisive route)

- **The remedy.** The **recurso de amparo** may be brought by **any person**, is **free**, needs **no lawyer, no authentication and no particular format**, may be filed **online**, and must be examined **with priority over any other process**. It protects the rights in the Constitution and in applicable international human rights instruments, and reaches **private actors in a position of power** as well as public authorities.

- **The right. Article 50:** every person has the right to a **healthy and ecologically balanced environment**, and the **State shall guarantee, defend and preserve** that right. The Chamber has reasoned that permits should issue only once **environmental viability is approved**, because irreversible damage is better prevented than lamented and mitigated.
- **The strongest constitutional framings.** Works begun **without the prior viability the statute makes indispensable**; viability **presumed by administrative silence** on a site of real environmental sensitivity; a **fragile area, recharge zone, forest or protected buffer** disregarded; **environmental information refused**, where the Chamber has applied **Rio Principle 10** and the **principle of maximum disclosure**, setting aside its own earlier ruling that had let mining-directorate technical documents be kept secret; and **irreversibility**, which goes to the heart of the Chamber's own reasoning.
- **Ask for suspension.** Where works are advancing, ask expressly for suspension while the case is decided — the speed of the procedure is precisely what makes this meaningful.
- **Time limits.** The general period for an amparo is **two months** from the act or from learning of it; **continuing violations** are treated differently, which matters where harm is ongoing. Confirm the current position — and do not delay, since filing is free.
- **The trap to avoid.** Where the complaint is really about **ordinary legality** with no fundamental-rights component, the Chamber will refer it to the contentious-administrative jurisdiction, costing months. Frame the claim around the **right**, the **irreversibility**, and the **absence of the legally indispensable prior approval** — not around technical disagreement.
- **Beyond amparo.** The Chamber may also declare laws, regulations and decrees unconstitutional, including for conflict with **ratified international treaties**; an action of unconstitutionality generally requires a pending case in which the point has been raised.

The three legal challenge types

TYPE 1: THE ADMINISTRATIVE ROUTE (the front door)

Register check, category and form challenge, fragile-area evidence, objections, and enforcement of commitments.

TYPE 2: THE ENVIRONMENTAL TRIBUNAL (for damage)

A free denuncia by any person, leading to investigation, restoration and sanctions.

TYPE 3: THE CONSTITUTIONAL CHAMBER (the decisive route)

A free, lawyer-free, priority-handled amparo on Article 50, the prior-viability requirement, information, and irreversibility — with suspension sought.

Legal Strategy Decision Tree

1. **Does viability exist, and how was it obtained?** → Ask SETENA in writing this week; the answer decides your case.
2. **Are documents refused?** → File an **information amparo** — fast, free, strong record, and it produces the file.
3. **Have works begun without prior viability?** → File a **substantive amparo** immediately and ask for suspension.
4. **Is the site a fragile area, recharge zone, forest or buffer?** → Get a signed technical opinion and put it before both SETENA and the Chamber.
5. **Has damage already occurred?** → File a free **denuncia** with the environmental tribunal in parallel.

Litigation Success Factors

A precise constitutional framing rather than a technical grievance; documentary proof of the viability position; a **signed independent opinion** on water, slope or forest; named applicants with a real connection to the place; an express request for **suspension**; brevity, because the Chamber decides quickly on papers; and speed, because the remedy is free and the harm may be irreversible.

What to Avoid: Legal Failures

Waiting to exhaust every administrative avenue before filing; dressing an ordinary-legality dispute as a constitutional one; filing a sprawling, unfocused amparo; overlooking that viability may have been **presumed** rather than granted; and neglecting the canton, which controls construction permission regardless of what SETENA has decided.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Costa Rica.

Works begun without prior environmental viability → amparo (the cleanest ground). Feed it with: the register position, dated photographs of the works, and the statutory requirement that prior approval is indispensable.

Viability presumed by administrative silence on a sensitive site → amparo. Feed it with: the D2 filing, the absence of any substantive resolution, and the site's fragile-area or recharge status.

A B2 project routed to D2 without a valid approved plan regulador → wrong route; studies escaped. Feed it with: the canton's plan regulador position and the project's real scale.

Environmental information refused → information amparo. Feed it with: your written request and the refusal — and the Chamber's own maximum-disclosure reasoning.

Site in a fragile area, recharge zone, forest or protected buffer → the substantive constitutional case. Feed it with: the official mapping and a signed technical opinion.

Damage already done → denuncia to the environmental tribunal; restoration. Feed it with: dated before-and-after photographs and the extent of clearing or contamination.

Environmental commitments breached → compensation measures and a compensation plan. Feed it with: the commitments and dated evidence of non-performance.

The pattern: **lead with the absence or defect of prior viability and the legal character of the place**, prove irreversibility, and ask for suspension.

STEP 5: MEDIA STRATEGY

Media matters in Costa Rica less for forcing a hearing — you already have one — and more for **finding the technical ally**, reaching the municipal council, and making a quiet administrative decision publicly visible.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the register printout showing viability **presumed rather than granted**, the mapping showing the site inside a recharge zone, a named neighbour whose spring is at risk, and dated photographs of the clearing. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a documented legal defect + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel: **water — springs, aqueducts and recharge zones, forest and slope**, and **a project that began without the approval the law makes indispensable**.

Know the Outlets That Cover This Beat

Map the national dailies and broadcasters and their environment correspondents, the strong independent and university-linked outlets that cover environmental disputes closely, and regional and community radio, which reaches affected districts directly.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer a site visit to the springs and the works, and be scrupulously accurate — in a country with an engaged environmental press, credibility compounds.

Why media matters even when it doesn't make the front page

Coverage reaches the university hydrogeologist whose signed opinion your free remedy needs, the councillor who can withhold construction permission, the organisation that will support the filing, and the wider public whose engagement makes a canton think twice. It also creates a dated record of what was said and when.

Sample Media Timeline

Launch with the register finding; refresh at each milestone — the information amparo, the technical opinion, the substantive filing and any suspension, the tribunal complaint, and the municipal decision.

Media Measurement

Track coverage, but measure what matters: whether the file is released, whether a technical expert comes forward, whether works are suspended, whether the canton acts, and whether SETENA revisits the viability.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated and sourced. File administrative documents through the entity's registry against a stamped copy. The **amparo requires no particular format, no lawyer, no authentication and no fee**, and may be filed online — so the template below is deliberately short, which is what the Chamber wants.

8A. Email to a reporter (story pitch)

Subject: [District, Canton]: works above the [community] springs — environmental viability appears to have been *presumed*, not granted

Estimada/o [name],

Since [date], earthworks have been under way at [location], above the springs that supply the [community] aqueduct serving [number] households. We attach dated photographs from [dates].

SETENA's register indicates the project [holds no viability / proceeded on a **D2** with viability **presumed** because no response issued within the statutory period]. The site appears to fall within [an environmentally fragile area / a water-recharge zone], per the attached mapping.

We have filed [a request for the file / an amparo] and are seeking a technical opinion from [university].

I can take you to the springs and the works. Could we speak this week?

[Name] · [Community organisation / ASADA] · [phone] · [email]

8B. Recurso de amparo — refusal of environmental information

SEÑORES SALA CONSTITUCIONAL DE LA CORTE SUPREMA DE JUSTICIA

[Nombre completo], [cédula], vecino de [localidad], interpongo **RECURSO DE AMPARO** contra [SETENA / la Municipalidad de ___ / la Dirección de ___], y expongo:

PRIMERO. El [fecha] solicité por escrito copia de [el expediente de evaluación de impacto ambiental del proyecto ___ / los estudios técnicos / la resolución de viabilidad ambiental], según consta en la solicitud que se adjunta.

SEGUNDO. A la fecha [no he recibido respuesta / la solicitud fue denegada], como consta en [documento].

TERCERO. La información solicitada es de carácter ambiental y se refiere a [un bien de dominio público / una actividad autorizada por la Administración]. La Sala Constitucional ha reconocido, con fundamento en el Principio 10 de la Declaración de Río y en el principio de máxima divulgación reafirmado por la Corte Interamericana, el derecho de las personas a acceder a la información ambiental en poder de las autoridades públicas.

PETITORIA. Solicito se declare con lugar el recurso y se ordene a la autoridad recurrida entregar la información solicitada dentro del plazo que esta Sala disponga.

[Fecha, firma, dirección para notificaciones, correo electrónico]

8C. Recurso de amparo — works without prior environmental viability

SEÑORES SALA CONSTITUCIONAL DE LA CORTE SUPREMA DE JUSTICIA

[Nombres, cédulas], vecinos de [localidad], interponemos **RECURSO DE AMPARO** contra [SETENA / la Municipalidad de ____ / el desarrollador ____], y exponemos:

PRIMERO. Los hechos. Desde el [fecha] se ejecutan obras de [descripción] en [ubicación], consistentes en [movimiento de tierras / corta de árboles / relleno]. Se adjuntan fotografías fechadas.

SEGUNDO. El sitio. El área se ubica [dentro de un área ambientalmente frágil / en zona de recarga acuífera / en cobertura boscosa / en pendiente superior a ____], según [documento/mapa adjunto], y aguas abajo se abastecen [número] familias mediante [naciente/ASADA].

TERCERO. La viabilidad ambiental. Según [consulta al registro de SETENA / la respuesta adjunta], el proyecto [no cuenta con viabilidad ambiental / obtuvo viabilidad presumida por silencio en trámite D2 / fue clasificado como ____ pese a su magnitud]. La Ley Orgánica del Ambiente exige la **aprobación previa** de la evaluación de impacto ambiental como **requisito indispensable** para iniciar la actividad.

CUARTO. El derecho. El artículo 50 de la Constitución reconoce el derecho de toda persona a un **ambiente sano y ecológicamente equilibrado** y obliga al Estado a **garantizarlo, defenderlo y preservarlo**. El daño que se causa es **irreversible**: [pérdida de naciente / desestabilización de ladera / eliminación de cobertura boscosa].

PETITORIA. Solicitamos: (i) que se ordene la **suspensión inmediata** de las obras mientras se resuelve el presente recurso; (ii) que se declare con lugar el amparo; y (iii) que se ordene a la Administración [anular/revisar] la viabilidad ambiental y abstenerse de otorgar permisos hasta contar con evaluación conforme a derecho.

[Fecha, firmas, direcciones y correos para notificaciones]

8D. Written objection to SETENA

Asunto: Observaciones y solicitud de estudios técnicos — proyecto [nombre], expediente [número]

Señores Secretaría Técnica Nacional Ambiental:

Los vecinos de [localidad] presentamos las siguientes observaciones: 1. **Agua.** [El proyecto se ubica en zona de recarga de las nacientes que abastecen el acueducto de __, *que sirve a __ familias; se adjunta criterio técnico de* .] 2. **Categoría y formulario.** [Por su magnitud y ubicación, el proyecto corresponde a categoría ____ y debió tramitarse mediante D1, no D2; el cantón no cuenta con plan regulador aprobado que cubra este sitio.] 3. **Áreas ambientalmente frágiles.** [El sitio figura en el listado adjunto; la evaluación no lo considera.] 4. **Pendiente y cobertura.** [Descripción y evidencia fotográfica fechada.]

Solicitamos que se requieran los estudios técnicos correspondientes y que **no se otorgue o se revise la viabilidad ambiental** hasta contar con ellos.

[Nombres, cédulas, fecha; conservar copia sellada]

8E. Denuncia to the environmental administrative tribunal

Asunto: Denuncia por daño ambiental — [ubicación]

Señores Tribunal Ambiental Administrativo:

Los suscritos, vecinos de [localidad], denunciemos los siguientes hechos: 1. Desde el [fecha], en [ubicación], se han realizado [corta de árboles / movimientos de tierra / relleno / vertidos], según fotografías fechadas que se adjuntan. 2. El sitio se ubica [en zona de recarga / en área ambientalmente frágil / en cobertura boscosa / próximo a naciente]. 3. [Consta que el proyecto no cuenta con viabilidad ambiental / que incumple los compromisos ambientales de la resolución ____.]

Solicitamos la **inspección del sitio**, la apertura del procedimiento correspondiente, las **medidas cautelares** que procedan, y en su caso la **restauración** del área afectada.

[Nombres, cédulas, fecha, contacto]

8F. Letter to the municipalidad

Asunto: Solicitud de información y de no otorgamiento de permiso de construcción — proyecto [nombre]

Señor Alcalde / Señores del Concejo Municipal de [cantón]:

Los vecinos de [distrito] solicitamos: 1. copia del **expediente municipal** del proyecto [nombre], incluyendo la

solicitud de permiso de construcción y el uso de suelo otorgado; 2. certificación de si el cantón cuenta con **plan regulador aprobado por SETENA** que cubra el sitio; 3. que **no se otorgue permiso de construcción** mientras no conste viabilidad ambiental válida y vigente, conforme al criterio de que los permisos deben otorgarse una vez aprobada la viabilidad ambiental.

Solicitamos además audiencia ante el Concejo.

[Nombres, cédulas, fecha]

8G. Press release (effective)

COMUNICADO — [fecha]

Vecinos de [distrito] acuden a la Sala Constitucional por obras sobre las nacientes de [comunidad]

Vecinos de [distrito], junto con [ASADA / organización], presentaron un **recurso de amparo** ante la Sala Constitucional por las obras que se ejecutan en [ubicación], sobre la zona de recarga de las nacientes que abastecen a [número] familias.

«[Cita breve de una persona vecina]», señaló [nombre]. Según el registro de SETENA, el proyecto [no cuenta con viabilidad ambiental / la obtuvo por silencio administrativo]. Se adjunta criterio técnico de [universidad] y fotografías fechadas.

El recurso solicita la **suspensión inmediata** de las obras. La Constitución reconoce el derecho a un ambiente sano y ecológicamente equilibrado y obliga al Estado a garantizarlo.

Contacto: [nombre, teléfono].

8H. Request for a technical opinion (university or professional)

Asunto: Solicitud de criterio técnico — [tema: recarga acuífera / estabilidad de ladera / cobertura boscosa]

Estimado(a) [profesor(a) / colegio profesional]:

Somos vecinos de [localidad]. En [ubicación] se ejecutan obras de [descripción] que consideramos afectan [las nacientes que abastecen nuestro acueducto / la estabilidad de la ladera / la cobertura boscosa].

Podemos aportar: fotografías fechadas desde puntos fijos; registros del acueducto rural sobre caudal y calidad; el expediente de SETENA [o constancia de haberlo solicitado]; y cartografía del sitio.

Solicitamos su criterio técnico, aunque sea breve y firmado, sobre [la ubicación del proyecto respecto de la zona de recarga / el riesgo de deslizamiento / la afectación del bosque]. Este criterio sería aportado a la Sala Constitucional y a SETENA.

[Nombre, comunidad, contacto]

Important Caveat

Templates are starting points. Adapt every one to your real facts and attach your evidence. Two things to remember: the **amparo is free, needs no lawyer and no special form, and is dealt with ahead of other cases** — so brevity and a clear constitutional point matter more than length; and the general period is **two months**, though **continuing violations** are treated differently, so take advice if time has passed. Keep stamped copies of administrative filings, and always ask expressly for **suspension** where works are advancing.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Costa Rica is the country in this series where the least time and money buy the most — because the decisive remedy is free and needs no lawyer. In rough order of impact for the effort:

1. **Check SETENA's register.** Does the project hold **environmental viability**? In which **category**? On **D1 or D2**? Granted expressly, or **presumed** because the administration did not respond in time? This single enquiry decides your strategy, and it can be made in a morning.

2. **If works have begun without prior viability, file an amparo now** (Section 8C). The statute makes prior approval **indispensable** before an activity begins; the Constitution guarantees a **healthy and ecologically balanced environment**; and the filing is **free, needs no lawyer, and is dealt with ahead of other cases**. Ask expressly for **suspension**.
3. **If documents are refused, file an information amparo** (Section 8B). It is fast, has a strong record, and it produces the file the main case needs.
4. **Establish the legal character of the site** — environmentally fragile area, water-recharge zone, forest, protected buffer, slope. A place's status can decide a case by itself.
5. **Photograph from fixed points, dated**. Cheap, repeatable, and the most persuasive evidence a community can produce.
6. **File a free denuncia with the environmental tribunal** if damage has already occurred (Section 8E).
7. **Ask a public university for a short signed technical opinion** (Section 8H) — the one input a free remedy genuinely needs.

If you do only the first two, you have established whether the project is lawfully authorised and, if it is not, put a priority-handled constitutional claim before the country's highest court — without spending anything.

WHEN THE SYSTEM IS TILTED

Costa Rica's tilt is administrative, not judicial. The courts are open and the constitutional right is strong; the weakness sits upstream, in how projects are assessed before anyone looks at them.

What This Tilt DOES (and DOESN'T DO)

The tilt means SETENA is chronically overloaded relative to the files it must process; assessments are commissioned and paid for by developers, albeit prepared by registered professionals; the **silence rule** on the shorter route can produce **viability nobody substantively examined**; the canton's **plan regulador** determines which projects get the lighter treatment; and development pressure on coasts, hillsides and recharge areas is intense. It does **not** close the doors: the **amparo is free, lawyer-free and priority-handled**; **Article 50** guarantees a healthy and ecologically balanced environment and obliges the State to **guarantee, defend and preserve** it; the Chamber has held that permits should follow approved viability because **irreversible damage is better prevented**; environmental information is presumptively disclosable under the **principle of maximum disclosure**; and a free **denuncia** to the environmental tribunal can produce restoration.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **Works without viability, or viability presumed on a sensitive site**. The strongest position in this jurisdiction: a clean constitutional fact, a free remedy, and a real prospect of suspension.
- **Mixed**. Viability granted expressly, but the site's fragile-area or recharge status was not properly weighed. Weight shifts to the technical opinion, objections to SETENA, the tribunal for any damage, and municipal permission.
- **Entrenched**. A project with express viability, full studies, municipal permission and works advanced. Assume annulment is unlikely; concentrate on **environmental commitments, compensation plans, monitoring and restoration**, and on the canton for anything still unbuilt.

Documented Costa Rican Dynamics

The record shows a system whose strength is judicial access. **The remedy is genuinely universal** — the amparo may be filed by **any person, free, online, without a lawyer, without authentication and in any written format**, and the Law of Constitutional Jurisdiction requires it to be examined **with priority over any other process**; it protects constitutional rights and those in applicable international human rights instruments, and reaches private actors in positions of power. **The right is constitutionally entrenched** — **Article 50**, as reformed in 1994, guarantees a **healthy and ecologically balanced environment** and requires the State to **guarantee, defend and preserve** it, importing precaution and state assessment. **The Chamber protects the sequence** — it has reasoned that permits should be granted **once environmental viability has been approved**, because irreversible damage can be prevented rather than lamented and mitigated afterwards. **And it has expanded environmental transparency** — in a 2018 amparo brought by a citizen refused topographic data about a public watercourse, sought to verify compliance with an authorised extraction rate, the Chamber applied **Rio Principle 10** and the Inter-American Court's **principle of maximum disclosure**, and **set aside its own earlier ruling** that had allowed technical documentation held by the geology and mines directorate to be kept secret. **The honest limit** is that the Chamber declines matters of **mere ordinary legality**,

referring them to the administrative courts — so the framing, not the grievance, decides. The lesson: **in Costa Rica the door is open; the skill is walking through the right one.**

Assessment Framework — Determine Your Situation

Ask: does viability exist, and how was it obtained? Did works begin before it? What is the **legal character** of the site? Was the category and form correct, and does an approved plan regulador actually cover this land? Has damage already occurred? Can we obtain a **signed technical opinion**? Is our complaint about a **right** or about ordinary administrative disagreement? The answers tell you whether to file an amparo now, build the technical case first, or work the canton and the commitments.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Costa Rica has an open civic space and a strong tradition of peaceful assembly, community meetings, marches and vigils, and these have accompanied major environmental campaigns. Keep actions lawful and orderly and coordinate where permission or notification is required. The strategic point is particular to this country: because the courtroom is **free and fast**, public action here is most valuable when it **supports a filed case** — publicising it, reaching technical allies, and pressing the canton — rather than substituting for a remedy the community can simply exercise.

Honest Assessment

Tilted fights are harder, and Costa Rica's difficulty is that a project may be authorised before anyone has really looked at it. But "harder" is not "hopeless": this is the jurisdiction in this series where a community with no money can put a case before the highest court within days, have it heard ahead of everything else, and obtain suspension while it is decided. Concentrate force where the tilt is weakest — **the viability question, the legal character of the site, and irreversibility** — get one signed technical opinion, and file.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with, or the product of an overloaded administration. But capture is real. Read your situation actor by actor, and publish documents rather than accusations.

The assessment itself. Prepared and paid for by the developer, even though the professionals are registered and authorised. Signs: recharge or slope treated cursorily, fragile-area status unmentioned, alternatives not considered. Lever: an independent signed opinion and objections to SETENA — and, where the professionals' registration or the study's adequacy is in doubt, say so on the record.

The category and the form. The cheapest way to avoid scrutiny is to be classified low and routed to the shorter form. Signs: a substantial project on **D2**, or reliance on a **plan regulador** that does not exist or does not cover the site. Lever: the municipal certification and a written challenge to SETENA.

The silence rule. Not corruption but a structural gap: where the administration does not respond in time, **viability may be presumed**. On a sensitive site that means a project proceeding without substantive review. Lever: say so plainly in an amparo — it is a strong constitutional framing.

The canton. Construction permission and the plan regulador are municipal, and both are politically contested. Signs: a plan amended shortly before a project appears; permission granted without a valid viability. Lever: the municipal file, the council, the Contraloría, and the Chamber's reasoning that permits should follow viability.

Information withheld. Where documents are refused, the Chamber's **maximum disclosure** reasoning is directly on point — and an information amparo is fast and free.

How to act on it, safely. Document from SETENA's register, the municipal file and the official gazette before you speak. Route genuine concerns to the **Contraloría General** for public funds, the **Defensoría de los Habitantes** for administrative conduct, and the **environmental tribunal** for damage — and, above all, into your **amparo**, where they are protected and consequential. Do not publish unproven accusations about named individuals: in a jurisdiction where the documentary route is this accessible, the documents will do the work.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Costa Rica the timeline is far shorter at the decisive end than anywhere else in this series, because the constitutional remedy is free and must be handled ahead of other cases. Plan in weeks, not years.

Realistic 12-Month Campaign Timeline

Weeks 1-2 (Establish the position). - Check SETENA's register: does **viability** exist, in what **category**, on **D1** or **D2**, granted expressly or **presumed**? - Request the **file** from SETENA and the **municipal file** from the canton. - Begin **fixed-point photographs** of the springs, slope, forest and works. - Establish the **legal character of the site** — fragile area, recharge zone, forest, buffer, gradient.

Weeks 2-6 (File early). - If documents are refused, file the **information amparo** (Section 8B) — free, fast, and it produces the file. - If works have begun **without prior viability**, file the **substantive amparo** with an express request for **suspension** (Section 8C). - Submit **written objections** to SETENA and ask the canton to withhold construction permission (Sections 8D, 8F). - Approach a **public university** for a signed technical opinion (Section 8H).

Months 2-4 (Build the substantive case). - Obtain and file the **technical opinion** on recharge, slope or forest. - File a free **denuncia** with the environmental tribunal for any damage already done (Section 8E). - Broaden the coalition — the rural water association, downstream communities, the municipal council, universities and organisations. - Sustain media, which is how the technical allies usually arrive.

Months 4-8 (Decision and consolidation). - Follow the amparo to resolution; where suspension was granted, ensure it is respected and report breaches. - Press SETENA on the **category, the form and the fragile-area position**, and on any required further studies. - Work the canton on **construction permission** and, where relevant, on the **plan regulador**.

Months 8-12 (Compliance and vigilance). - Where viability stands, obtain the **environmental commitments** and monitor them; breach triggers **compensation measures and a compensation plan**. - Keep the fixed-point photographic record going. - Watch for **modifications and expansions**, which reopen assessment.

Beyond 12 months. - Maintain the record and the university relationship; a second filing is cheap if circumstances change. - Keep an eye on the **plan regulador**, since amendments change both what may be built and which assessment route applies.

Warning Signs — Act Early

Machinery or clearing above springs; survey stakes on a slope; a project appearing in SETENA's register in a low category; a **plan regulador** amendment; a construction permit request at the canton; water turning turbid after rain. Each is a trigger to **check the register that week** — because in Costa Rica, once you know the viability position, you know your case, and the remedy costs nothing.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: check the register first; file early because filing is free; frame the claim as a **right** and as **irreversible harm**, not as technical disagreement; establish the **legal character of the site**; obtain one **signed technical opinion**; ask expressly for **suspension**; use the free **denuncia** in parallel; and work the canton, which controls construction permission whatever SETENA has decided. Losing campaigns: wait to exhaust administrative avenues; file a sprawling amparo about ordinary legality; never establish whether viability was **granted or merely presumed**; and neglect the municipality.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Costa Rica takes several forms, and it is worth naming them so you recognise a win when you get one: - **works suspended** while an amparo is decided — often the decisive practical outcome, obtained in weeks; -

environmental viability refused, conditioned, annulled or reopened for proper study; - **environmental information ordered released**, on the Chamber's maximum-disclosure reasoning; - a project **routed back from D2 to D1**, so the technical studies actually get done; - **construction permission withheld** by the canton; - **restoration ordered** and sanctions imposed by the environmental tribunal; - **compensation measures and a compensation plan** where commitments were breached; - and a community that now knows it can reach the highest court, for nothing, whenever the next project appears.

Costa Rican communities have obtained all of these.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone — but note that the usual reason to stop, cost, largely does not apply here. If viability is absent or presumed, file: the claim is strong and the filing is free. If viability was properly granted and the studies genuinely addressed the site, the honest answer may be that the environmental case is weak, and the better path is **conditions, monitoring, compensation and the canton**. If the Chamber refers your case to the administrative courts, that is a signal about **framing**, not necessarily about merit — take advice and consider refiling on a rights basis. And if harm is irreversible and imminent, do not wait for perfect evidence: ask for suspension now and build the record while the case is pending.

The Bottom Line

Costa Rica's environmental administration is overloaded, its assessments are developer-funded, and a silence rule on the lighter route means some projects hold a viability nobody substantively examined. But no country in this series gives communities easier access to a court. The **recurso de amparo** may be brought by **any person, free of charge, online, without a lawyer, without authentication and in any written format**, and must be examined **with priority over any other process** — protecting the rights in the Constitution and in applicable international human rights instruments, against public authorities and private actors in positions of power alike. What it protects is **Article 50**: every person's right to a **healthy and ecologically balanced environment**, which the **State must guarantee, defend and preserve**. Beneath it, the **Ley Orgánica del Ambiente** makes SETENA's **prior approval an indispensable requirement before an activity may begin**, sorts projects into **A, B1, B2 and C** and routes them through **D1 or D2**, weighs **environmentally fragile areas**, and imposes **compensation plans** where commitments are breached; a free **denuncia** to the environmental tribunal can produce restoration; and the Chamber has both insisted that permits follow approved viability — because irreversible damage is better prevented than mitigated — and extended **maximum disclosure** to environmental information, setting aside its own earlier ruling to do so. Communities that check the register in week one, establish the legal character of their land, obtain one signed technical opinion, frame the claim as a right rather than a technical quarrel, ask expressly for suspension, and file early have stopped works, reopened assessments, forced disclosure and secured restoration — without spending money on lawyers. No single step wins; the combination does. Start today by asking one question: **does this project actually have environmental viability, and how did it get it?**